

APPROVED

By Alessandra at 1:16 pm, Apr 07, 2021

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION ADOPTING THE CITY OF CHEYENNE’S STATEMENT OF DESIGN STANDARDS, NAMING, MEMORIAL AND GIFTING POLICY.”

WHEREAS, the City Cheyenne desires to adopt the City of Cheyenne Design Standards for a Naming, Memorial, and Gifting Policy; and

WHEREAS, the City has received requests by members of the Governing Body for such standards and policies; and

WHEREAS, a standardized policy will improve the efficiency and contiguity for design standards, naming, memorials and giftings for the city as a whole.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne’s Design Standards Naming and Memorial, and Gifting Policy, which is attached, is hereby adopted and made effective June 1st, 2021

PRESENTED, READ AND ADOPTED this _____ day of _____, 2021

Patrick Collins, Mayor

(SEAL)
ATTEST:

Kristina F. Jones, City Clerk

City of Cheyenne

Naming and Memorial Policy

It is the policy of the City of Cheyenne (City) that the naming of new and renaming of existing facilities be reserved for exceptional circumstances and that the naming process comply with the guidelines and procedures set forth in this policy.

Purpose:

These policies and procedures are intended to guide a) any individual or community group that is interested in having a park, building, or major feature named for a significant person, event, or place, b) any individual, group, or business that is interested in having their significant donation (park, building, major feature) named, and c) decision makers.

Definitions:

Parks. All traditional designed parks, natural open spaces, historic sites, golf courses, specialized parks (e.g. Botanic Gardens, Skate Park), and trails under the department's jurisdiction or management

Buildings. Significant structures that house City functions and programs

Major Features. Major, permanent components of City facilities, (e.g. ball fields, swimming pools, tennis courts, playgrounds, amphitheaters, fountains, artwork or physical features lakes). Rooms within Buildings are considered to be Major Features.

Amenities. Smaller furnishings and facilities (e.g. Benches, small fountains, tables, etc.)

Amenities are not formally named. Recognition for donated amenities is covered under the ***Gift and Memorial Policy***.

Naming or renaming City facilities is often complex as naming is a powerful and permanent identity for a public place. Excessive naming of individual features and facilities can be confusing to the public.

Approval of naming requests is a prestigious, cautious process that typically involves meeting with the appropriate City Department, petition process and verification, public meetings held in conjunction with governing body meetings, and resolution approval.

The policy of the City is to reserve the naming or renaming of facilities to those circumstances which tradition and practice have shown to best serve the interests of the City and assure a worthy and enduring legacy for the City. To this end, the City supports consideration of naming requests in the following three broad categories:

Exceptional Individuals - recognition of an exceptional City leader or a dedicated supporter of the City

Historic Events, Places, and Persons – recognition of a major historical event or place or person(s), local landmarks, prominent geographical locations of historic, social and cultural significance

Major Gifts - recognition of community generosity in the form of gifts of time, skills, resources and products, and money donated by public and private foundations, individuals, businesses

General Principles. In considering any proposal to name or rename a Park, Building, or Major Feature, the following will be considered:

- a) Lasting historical, cultural, and social significance
- b) Name engenders a strong and positive image
- c) Name memorializes or commemorates people, places, or events of enduring importance to the community or the nation
- d) Name engenders significant ties of friendship and mutual recognition and support within the community and/or with those outside of the community
- e) Name is identified with some major achievement or the advancement of the public good within the community or the nation
- f) Name is particularly suitable for the park, building, or major feature based on the location, history, or surrounding neighborhood
- g) Name has symbolic value that transcends its ordinary meaning or use and enhances the character and identity of the park, building, or major feature
- h) Ensure any naming request that accompanies a corporate gift will not result in undue commercialization

Renaming Parks, Buildings, and Major Features. Proposals to *rename* facilities are not encouraged and should be entertained only after fully investigating and considering the potential impact of dropping the current name. Names that have become ingrained or widely accepted in the community should not be abandoned unless there are compelling reasons and strong public sentiment for doing so.

Historical or commonly-used place names should be preserved wherever possible.

Naming or Renaming for Exceptional Individuals. The following guidelines apply to *naming or renaming* requests that result from either a community process or major gift.

Typically, naming rights are not conferred until the named person is deceased. Typically, such naming after a person should not occur until the person has been deceased for at least two (2) years and that person's historical significance and good reputation have been secured in the history and lore of the community and/or the nation.

Priority for naming facilities after deceased persons should be given in the following order to those who have significant and lasting contributions:

- to the City of Cheyenne; or
- to the nation.

Naming Parks and Buildings after national or international figures should be rare and only upon a substantial demonstration of the figure's connection to or special importance in the Cheyenne community or the State of Wyoming.

Naming of facilities after people or a group of people who perish in or survive a tragic event or war should be considered only well after the public shock generated by the tragic event or war has lessened.

Potential sites for such memorials should be focused on facilities that are more known for their serene and contemplative nature rather than active recreational locations, such as playing fields and recreation centers.

Emphasis should be placed on the contributions or heroic actions of these people during their lifetime, rather than the circumstances of their death or survivorship.

Naming and Renaming for Historic Events, Places, and Persons. When a facility is located near or otherwise associated with events, places, and people of historic, cultural, or social significance, it is appropriate to consider naming such facilities after such events, places, and people. The relationship of the facility to the events, places, and people of historic, cultural, or social significance should be demonstrated through research and documentation. Such naming will follow the public input and Council approval process.

Naming and Renaming for Major Gifts. Typically, the donation of gifts to the City of Cheyenne should be reward in itself, with recognition being given as set forth in the ***Gift Policy***. Occasionally, a gift will be made to the City that is of such magnitude and generosity that naming of such new park or facility in honor of or at the request of the benefactor will be considered. Any request to rename an existing park or facility that is associated with a major gift to expand or refurbish that park or facility must meet the naming guidelines but is discouraged.

Threshold. As a guideline but not a limitation, the threshold for naming rights on parks or buildings would include one or preferably more of the following:

- deeding to the City most if not all of the land on which the park or building to be named will be situated
- payment of one-half or more of the capital costs of constructing a park or building to be named (depending on the availability of matching funds or grants)
- long-term endowment for the operation, repair and maintenance of the donated park or building,
- provision of significant program costs for facilities that will serve City program and facility needs

Likewise, as a guideline but not a limitation, the threshold for naming rights on major features would include one or preferably more of the following:

- payment of the capital costs for constructing and installing a major feature
- some long-term endowment for the operation, repair and maintenance of the donated major feature
- provision of significant program costs for any major feature giving rise to or supporting a City program or operation

Other Requirements. In no case shall naming or renaming be considered unless the major gift is deemed acceptable in accordance with the ***Gift Policy*** and allowable under the provisions of City governance.

Naming for Persons. Benefactors seeking naming rights for major gifts will be encouraged to follow the guidelines herein. An exception will be considered on its own merits. A major feature

that has been donated or refurbished may be named for a living person(s) provided that said person(s) is of good reputation.

Whatever contract accompanies the gift and naming rights should address all conditions applying to the naming, including time limits for naming of features. However, in addition, the City reserves the right to rename any park, building, or major feature if the person for whom it is named turns out to be disreputable or subsequently acts in a disreputable way.

Naming for Entities. A corporation, association, and other legally created entity making a major gift may request that the name of that entity be associated with the name of the park, building, or major feature which is the subject of the major gift. Each request is evaluated on its own merits by the City.

In making a recommendation for a corporate name, the reputation of the company and community support should be considerations. Corporate logos, brands, insignias, may be used as part of any name association or naming. No direct advertising is allowed. Renaming of any existing park or building is discouraged even when associated with a major enhancement gift. The City reserves the right to remove an entity name association on a park or building or to rename a major feature if the entity turns out to be disreputable or subsequently acts in a disreputable way.

Other Considerations.

Typically, a park should not be subdivided for the purposes of naming unless there are readily-identifiable physical divisions (major roads, waterways, etc.) in the park and other compelling reasons for having more than one name for a park. This limitation on naming a park should not prevent giving a different name for a trail, building, or major feature located in or near the park. However, care should be taken in giving a name to a trail, building, or major feature that is different from the name of the park so that confusion is not caused for the users of the differently named facilities.

Facilities that are held by the City through a short-term lease or use agreement or improvements that have a limited life span or occupancy should not be named.

All signs on parks and buildings must meet the City's or responsible Department's graphic and signage standards. No specialized signage will be displayed.

If a new park or building is completed and no suggestion for a name has come from the community or in association with a gift, the City will recommend a name, using any organized public process (i.e. nominations, contest, etc.) that they decide upon.

Procedures for Community or Citizen Requests to Name or Rename a Park or Building.

Applicant's Process. An applicant must compile a petition and make a presentation to the City to recommend naming or renaming a park or recreational facility. Applicants shall ensure that the request meets the criteria for proposed names as presented in this policy. Details of the process include:

- ☐ Written notification to the City Clerk's office to start the process. It should include the reasons for the request. The reasons will be included in the petition language and template prepared by the Clerk's Office. The petitions can be picked up, mailed, or emailed to:

*City of Cheyenne City Clerk
2101 O'Neil Avenue
Cheyenne, WY 82001*

- ☐ A formal filing of the petitions with the Clerk at the above address as soon as necessary signatures have been gathered. The following criteria for the petition must be met:
 - ✓ The petition shall state the reasons for the proposed name.
 - ✓ The petition should demonstrate community support for the proposed name.
 - ✓ The petition should contain a description and/or map depiction of the boundaries of the Park or Building to be named or renamed.
 - ✓ The petition may only be signed by residents of the City of Cheyenne.
 - ✓ The petition should show the name, address and telephone number of each signer.
 - ✓ The number of signatures required should be a minimum of 300 for small neighborhood parks and their Major Features; 500 for community parks (generally over 20 acres) and their Major Features; and 1,000 for regional parks (over 50 acres or regional draw) and their Major Features. Major buildings must have a minimum of 500 signatures.
- ☐ A formal presentation of the naming or renaming proposal shall be made to the Department.
- ☐ Within 45 days after the completed petitions are filed and formal presentation, the Department will make a determination about the proposed name.
- ☐ The applicant shall have a supportive and sponsoring Council member for the Naming Ordinance. The applicant is advised to track the Naming Ordinance through the process.
- ☐ The applicant should attend the City Council and committee meetings and be prepared to speak briefly about the request. Other interested persons can be invited to attend as well. The applicant should ensure that the sponsoring Council member can attend the meetings.

Procedures for Community Requests to Name or Rename Major Features

The same petition and procedures for Naming Parks and Buildings apply to Major Features, except City Council action is not required.

Procedures for the Naming and Renaming of Parks, Buildings, and Major Features Associated with Major Gifts

- ☐ The responsible Department Director overseeing the park, building or major feature will submit a proposal for the naming or renaming of any park, building, or major feature that is associated with a major gift. The petition process is not necessary.
- ☐ For naming or renaming a park or a building, City Council approval through a Naming Ordinance is required (as provided above) following a favorable recommendation by the Department. A Public Hearing is strongly recommended.
- ☐ For naming or renaming major features, only responsible Department approval is required.

City of Cheyenne Design Standards Gift Policy

It is the policy of City of Cheyenne (City) to actively encourage gifts that reinforce its mission and core services. Acceptance and recognition of gifts (property, goods or cash) must comply with the guidelines and procedures set forth in this policy.

Purpose:

This policy is intended to help potential donors understand how the City decides whether to accept a proposed gift and how that donor can be recognized and thanked; to guide decisions of the City, elected officials, and staff.

The City has benefited from a rich legacy of community generosity. Over the decades Cheyenne residents and businesses have given gifts of their time, materials, products, and money. Public and private foundations have invested in the City. A donation can dramatically increase the quality of a program, park, or building or make the difference during economically lean times. The City encourages and facilitates public and private gifts, bequests, and such contributions that enhance and support services, parks, buildings, programs, and goals of equity. The City wants to assure donors that their gift will be well-maintained and recognized. These policies outline the criteria for accepting gifts and recognizing donors.

Definitions

Gift: A gift is a freely given donation of property, goods, or cash to the City, preferably with no expectation of return. If the gift is contingent upon a special request or restriction, the gift is considered as being subject to a “condition”. Property can range from land and buildings to smaller goods. Cash could include actual cash, discounts, or investments. Gifts may be donated for a specific purpose or may be general in nature.

Naming Benefits. Naming is the permanent name associated with a park, building, or major features within a park or building and is an exceptional way in which to recognize a substantial gift. See the *Naming & Memorial Policy*.

Corporate Sponsorship. Corporate sponsorship differs from gifts; it is financial or in-kind support from a for-profit entity for a specific City event, project, program and site in exchange for tangible and intangible marketing benefits to both the sponsor and the City. See the *Corporate Sponsorship Policy*.

General Principles: The following principles are intended to help potential donors understand the process and complexity for the City in accepting gifts.

a) The City works closely with each donor to provide meaningful recognition. The final decision is made by the City and is guided by established recognition and signage guidelines and applicable policies. A variety of methods providing gift recognition is encouraged and naming benefits are reserved for the most compelling contributors to the City or major donors.

- b) The City must have adequate operating budget and staffing to accept, implement, and maintain the gift. Consequently, gifts that require levels of service, maintenance, or staffing beyond current levels shall consider necessary funding for the operating budget.
- c) Gifts are encouraged that help eliminate any disparity in the quality of facilities and services across the City.
- d) In order to promote departmental priorities and the goal of equity, the City and its partners will proactively offer potential donors a variety of meaningful and relevant gift programs or ideas, such as tribute walls, bench programs, donor plaques and work to ensure wide geographic distribution.
- e.) Gifts must be given with the understanding that:
 - they become the property of the City and are subject to the laws, policies and procedures that govern the City and the department.
 - the department is not obligated to replace the gift if it is stolen, vandalized, worn out, irreparably damaged or destroyed or, in the case of plant material, dies.
 - gifts must bear no emblem of, or reference to, firearms, tobacco, alcohol, or sexually explicit materials.
- f.) Once accepted, the City reserves the following rights with respect to the gift:
 - to remove or return any donated item
 - to determine where the improvement will be located and when it will be installed (unless a specific location is agreed upon in advance)
 - to determine the life span of the improvement and to remove it when appropriate
 - to determine style and design of the improvement to fit City specifications, historic and environmental context
 - to require the groups or individuals involved to meet City standards of liability and insurance coverage if volunteer labor is used

Guidelines for Accepting Gifts

The City welcomes these generous gifts as an opportunity to enhance services as long as they are consistent with City and departmental policies and regulations; respect the physical beauty of public spaces; and reaffirm the City's mission and core services. In examining any proposed gifts, contemplate if the project could be built or happen otherwise, and consider the following individually and collectively:

- Gift is consistent with the mission, values, priorities, and master plans of the City
- Gift has community or neighborhood support
- Gift meets departmental specifications, such as construction quality
- Gift enhances existing programs and facilities
- Gift reinforces the City's priorities
- Gift addresses the Department's goal of equity of services and facilities across the City
- Adequate budget and staffing to maintain the gift

Conditional gifts may include requests for naming parks, recreation facilities, or buildings (see ***Naming and Memorial Policy*** for details on naming) or requests for permitting priority or

access to facilities built or improved as a gift. When considering requests for permitting priority or access, ensure that the request does not:

- negatively impact public access in a way that exceeds the value of the gift or the public good served by the gift
- negatively impact equity of services across the City
- have the effect of turning a public facility into essentially a private one
- negatively impact existing programs, activities, and uses

Other gifts subject to conditions will be considered on a case-by-case basis. These types of gifts include but are not limited to the following:

- Any monetary gift that is time limited or requires subsequent donor approval of project plans
- Any monetary gift that is restricted to a specific use
- A real property gift subject to defensible fee, reversionary interest, or life estate
- Any gift that requires or restricts the public use or access to the gift in a manner not in conformance with federal or state law, City Charter or Ordinances, or department policies and rules and regulations
- Any gift that requires action by the City and/or department
- Any gift that requires a substantial financial commitment or a “maintenance effort” by the City or department as a prerequisite for or in association with a gift

Procedures for Accepting a Gift

The City may approve or decline any proposed gift.

In addition, any gift of real or personal property must be approved by the affected Department Director and be supported by the governmental process.

Any proposed major gift that substantially impacts the public use of parks or building, impacts the City’s resources, or has an accompanying condition requested with it must be approved by the City. If a gift includes the request to name a public park, building, or major feature, it must follow the ***Naming and Memorials Policy***.

The process for donating a gift to the City is to:

- Contact the City Clerk directly about any proposed gift (except for trees)
City Clerk
2101 O’Neil Avenue
Cheyenne, WY 82001
- A City staff member will work directly with the donor for the appropriate reviews and recognition for each gift.

Procedures and Guidelines for Recognition of a Gift

The City wants to recognize the generosity of its donors in a meaningful way. At the same time, the City strives to minimize visual impacts in parks, buildings, and major features. The staff will work with the donor to select a variety of options to thank and recognize them for their gift. That

can include recognition in marketing materials, City website, collective gift walls, or small plaques. The following guidelines apply to all gift recognition:

- All forms of recognition must meet City design and maintenance guidelines.
- The City will establish and follow guidelines for the size, material, color and location of a plaque or other name recognition media.
- Often many people may be “behind the scenes contributors” to a major gift (e.g., elected officials, staff members, or community leaders). However, permanent recognition, by name, should be limited to the donor(s).
- Permanent recognition of donors in public spaces and parks must have minimal visual impact, be tasteful, and appropriate to the scale of the place and gift. Plaques will be directly connected to the gift or in a collective display area.
- Permanent recognition in a park or building can include the name of individuals, organizations, and corporations. Product names and company logos are considered advertising and are not acceptable. If a gift is for a series or group of improvements (e.g., new signs, trail markers, play equipment components) recognition will be limited to one primary location.
- Other visible recognition objects will be limited to areas recognized as “built” environments (e.g. benches, picnic tables, buildings, play areas, ball fields, tennis courts).
- Overall guidelines for accepting gifts and naming requests are covered in City policies: ***Gift Policy, Corporate Sponsorship Policy, and Naming and Memorial Policy.***

Procedures and Guidelines for Permanent Recognition. These are guidelines for permanent, public recognition of gifts. The City will also recognize donors and gifts in a variety of ways such as printed materials and announcements.

Internal Department Process and Materials for Recognition of Gifts

Simple wording:

- “Dedicated to....” “In honor of.....” “In celebration of....”
- No logos

Dates:

- Date of dedication or installation (no birth/death dates)
- City should have a master plan of general areas where benches could be added and other material gifts (shelters, equipment, plazas, playgrounds, flower beds, etc.)

Recognition for multiple gifts (e.g., a series of trail markers, many signs, all the equipment) will be consolidated into one primary place. Recognition attached to gift if possible.

- Kept in scale to not detract from the gift or context
- Connected to an architectural element (in the wall, pavement, boulder)
- Details (materials, font, graphics determined by City)
- Logos: no company logos or brands incorporated into permanent recognition on display in a park or recreation facility

Signs

Standard City design preferable for large gifts (naming rights). Smaller gifts will be recognized by plaques, interpretive materials, or other appropriate recognition. No logos.

